

Verwerkersovereenkomst (Data Processing Agreement) — template

NOT A SIGNED CONTRACT. NOT LEGAL ADVICE. This is a drafting starting point built to GDPR Art. 28. A processor agreement is a binding legal instrument — **a privacy lawyer must review and adapt it before either party signs.** Brackets [...] are fields to complete. Many clients will prefer their own DPA template; this exists so you can respond fast and negotiate from a position of readiness, not from a blank page.

Verwerkersovereenkomst between:

[Client legal name], the **Controller** ("Verwerkingsverantwoordelijke"); and
[Unlockt legal entity name, KvK no.], the **Processor** ("Verwerker").

This agreement supplements the services agreement dated [date] (the "Main Agreement") and governs the Processor's processing of personal data on the Controller's behalf in delivering the Gender Capital Lab™ Sprint platform.

1. Scope & instructions

1.1 The Processor processes personal data only on the Controller's documented instructions, including the processing set out in **Annex 1**, unless required otherwise by EU or Member State law (in which case it informs the Controller first, unless the law prohibits this). 1.2 The Processor informs the Controller if, in its opinion, an instruction infringes the GDPR.

2. Confidentiality

The Processor ensures persons authorised to process the data are bound by confidentiality.

3. Security

The Processor implements appropriate technical and organisational measures per GDPR Art. 32, as set out in **Annex 2**.

4. Sub-processors

4.1 The Controller gives general authorisation for the sub-processors listed in **Annex 3**. 4.2 The Processor informs the Controller of intended additions or replacements, giving the Controller [14] days to object on reasonable data-protection grounds. 4.3 The Processor imposes the same data-protection obligations on each sub-processor by contract and remains liable for their performance.

5. Data-subject rights

The Processor assists the Controller with appropriate technical and organisational measures, insofar as possible, to respond to data-subject requests (Art. 12–23), and forwards any request it receives directly to the Controller without undue delay.

6. Assistance

The Processor assists the Controller in ensuring compliance with Art. 32–36 (security, breach notification, DPIA, prior consultation), taking into account the nature of processing and the information available to it.

7. Personal-data breaches

The Processor notifies the Controller without undue delay and at the latest within **[24 / 48] hours** of becoming aware of a personal-data breach, with the information the Controller needs to meet its Art. 33/34 obligations.

8. Return & deletion

On termination, at the Controller's choice, the Processor deletes or returns all personal data and deletes existing copies, unless EU/Member-State law requires storage. The Processor's deletion process and timelines are described in `04_retention-and-deletion.md` .

9. Audits & information

The Processor makes available to the Controller information necessary to demonstrate compliance with this agreement and Art. 28, and allows for and contributes to audits, including inspections, conducted by the Controller or an auditor it mandates ([reasonable notice; once per year unless an incident]).

10. International transfers

10.1 The Processor and its sub-processors transfer personal data outside the EEA only with appropriate safeguards (Art. 46), principally **Standard Contractual Clauses**. 10.2 The Controller acknowledges that AI processing is performed by **Anthropic in the United States** under SCCs, as described in `01_data-flow-and-residency.md` and `02_subprocessor-list.md` , with no use of data for model training and a 30-day deletion window.

11. Liability, term, governing law

Liability follows the Main Agreement. This agreement runs for the term of the Main Agreement. Governed by **[Dutch] law**; disputes before the courts of **[Amsterdam]**.

Signed: Controller _____ Processor _____ Date _____

Annex 1 — Processing details

Subject matter: delivery of the Gender Capital Lab™ Sprint platform.

Duration: the term of the Main Agreement.

Nature & purpose: intake, diagnostic analysis, AI-assisted research and concept/prototype generation, and capture of test-panel feedback.

Types of personal data: names and roles of client crew; their free-text

intake and interview answers; self-assessment responses; the contents of documents the crew uploads; test-panel participants' first name, age band, scores and verbal feedback.

Categories of data subjects: the client's employees (crew); persons referenced in uploaded documents; consumer test-panel participants.

Special categories: none intended. Controller instructs crew not to upload special-category data.

Annex 2 — Technical & organisational measures

See `05_security-measures-TOMs.md` (incorporated by reference).

Annex 3 — Sub-processors

See `02_subprocessor-list.md` (incorporated by reference): Anthropic (US, AI), Vercel (EU-Frankfurt, hosting), Turso (EU-Ireland, database).